

Conclusion. HYUNDAI's motion to compel arbitration is denied.

MIGUEL ANGEL SANDOVAL FLORES et al. v. INTEGRITY MOVING SOLUTIONS, INC., et al. CU25-09834

Defendants' Motion for Dismissal

TENTATIVE RULING:

It is unclear to the court why plaintiff's counsel and defense counsel did not meet and confer and why this motion was not vacated by defense counsel. Unfortunately, unnecessary motions like these too often clog court calendars creating unnecessary backlogs and wasting resources.

William Richard LaVigne filed this motion to dismiss on behalf of Defendant INTEGRITY MOVING SOLUTIONS, INC. and on behalf of himself on May 26, 2026. Subsequently, an answer was filed by defense counsel on behalf of both defendants on August 5, 2026.

A pro per may not represent a corporation. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) By doing so, LaVigne engaged in the unlicensed practice of law.

The 7 month delay in serving the complaint is not a basis for dismissal of the action.

The court notes that opposition to the motion was served after an answer had been filed with legal counsel noted on the caption. The opposition was served solely on LaVigne and not on defense counsel. It is unclear to the court why plaintiff's counsel failed to serve the opposition to newly appearing counsel of record.

Defense counsel shall file a substitution of counsel for LaVigne individually forthwith. As LaVigne is not legally permitted to represent a corporation, his "appearance" by filing a motion to dismiss is disallowed.

The motion to dismiss is DENIED.

BEATTIE v. COUNTY OF SOLANO, et al.
Case No. CU26-03723

Motion to Strike Portions of Complaint

TENTATIVE RULING

For injuries caused by a dangerous condition of public property, the only potential basis for liability against the public entity owning or controlling that property is Government Code §§630 and 635. Government Code §840 provides:

Except as provided in this article, a public employee is not liable for injury caused by a condition of public property where such condition exists because of any act or omission of such employee within the scope of his employment. The liability established by this article is subject to any immunity of the public employee provided by statute and is subject to any defenses that would be available to the public employee if he were a private person.

It is only for injuries that occur on property not owned and/or controlled by a public entity that it could face potential liability under Government Code §§815.2 and 820 for the negligence of an employee within the course and scope of employment, if the employee's actions created or increased the danger, on property not owned or controlled by the public entity employer, and were made within the course and scope of employment.

Plaintiff's complaint alleges that the accident occurred "While walking on a pavement section controlled by the Defendants, Plaintiff was injured due to a pavement defect" [Complaint, ¶4]. It further alleges that the subject accident occurred on "the above described public property" [Complaint, ¶5].

The complaint contains no allegations that the subject accident might have been caused by a condition of property not under the control and/or ownership of CITY, but perhaps on which a CITY employee might have negligently done something to cause or increase the risk.

To a degree, Plaintiff appears to concede CITY's arguments. The suit is for dangerous condition of public property associated with a pavement defect. The opposition contends "The sidewalk surface at issue appears to have been painted by someone in the past. If that paving was performed by a City employee or contractor acting within the scope of employment the act constitutes the very "negligent or wrongful act or omission of an employee..." (Opposition, pp. 3-4.) Plaintiff does not explain how negligent painting resulted in injury to plaintiff, if Plaintiff is claiming that the negligent acts occurred on a third party's property, or how such a claim would not be statutorily barred by immunity conferred on individual public employees or CITY's immunity for acts performed by an independent contractor hired by CITY. (Govt. Code, §§ 815.4, 840.)

The court therefore grants CITY's motion to strike the allegations referring to Government Code §§815.2 and 820.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca.gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002